

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, I.L.C.,
Plaintiff,

vs.

Case No.: 2025-CC-000714

SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

MOTION FOR DEFAULT FOR FAILURE TO PAY RENT

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, d/b/a COLONIAL MOBILE MANOR, by and through counsel, and pursuant to Fla. R. Civ. P. 1.500, moves for a default in the above-styled cause of action and, in support of this motion, states that the Defendant(s), while having filed a document in defense, have failed to deposit into the registry of the court the money which the complaint seeks or request a hearing on the determination of rent within five days of the date of service. Pursuant to Fla. Stat. §723.063, failure of the Defendant(s) to pay accrued rent entitles the Plaintiff to an immediate default.

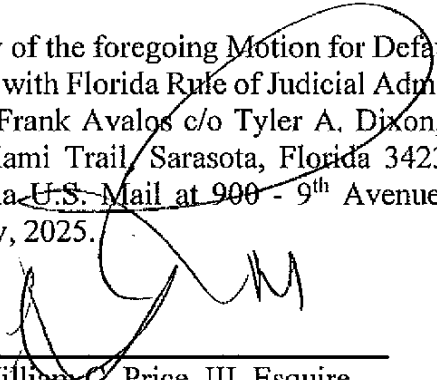
This motion is governed by Fla. Stat. §51.011.

Counsel for the Plaintiff has conferred with counsel for the Defendants pursuant to Fla. R. Jud. Admin. 1.202 regarding this motion. Counsel for the Defendants did not agree to the entry of default. Accordingly, a hearing on the motion is being set.

WHEREFORE, the Plaintiff respectfully moves this Honorable Court to enter a default against the Defendants, entitling the Plaintiff to possession of the premises, and for such other relief as is warranted under the facts and law.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Default for Failure to Pay Rent and has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to Defendants, Sylvia Hernandez Avalos and Frank Avalos c/o Tyler A. Dixon, Esq.; BERLIN PATTEN EBLING, PLLC, 3700 South Tamiami Trail, Sarasota, Florida 34239 and to ANY UNKNOWN PARTY(s) IN POSSESSION via U.S. Mail at 900 - 9th Avenue East, Lot #70, Palmetto, Florida, 34221, on this 3rd day of July, 2025.



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